

HLOYANE'S RESIDENTIAL LEASE AGREEMENT

This is a written contract that sets out the terms and conditions between the Landlord and the Tenant of a residential property.

THE LANDLORD.

Name & Surname: Zolile M. Hloniyane

Address:

21 Joko Avenue
Kwa-Nonzame

Middelburg E.C 5900

(the address acts as the domicilium citandi et executandi)

Email:

610939@gmail.com

Cellphone Number:

082 588 0914

THE TENANT

Name & Surname:

Msindisi Mtengwane

ID Number:

9207266156084

Address:

(the address acts as the domicilium citandi et executandi)

Email:

~~msindisi~~ msindisi.mtengwane@gmail.com

Cellphone Number:

0634292629

Lessee:

2. THE RESIDENTIAL PREMISES

2.1. The Landlord lets to the Tenant, who hires the following Premises:

Address: No 1 New Street

MIDDELBURG E/C

5900

✓ Carport

2.2. The premises do not only refer to the dwelling or grounds in terms of this agreement, but also to any of the Landlord's fixtures and fittings in/on the dwelling. This includes, but not limited to keys, locks, windows, electrical appliances, sanitary ware, sewage pipes, stoves, geysers, taps and other fixtures of fittings specifically specified in this agreement.

2.3. The premises will only be used for private residential purposes, and the Tenant will not allow more than 3 people to stay on the Premises at any time, without obtaining written permission from the Landlord first.

2.4. No animals, birds or pets may be kept on the Premises, without written permission of the Landlord.

3. RENTAL

3.1. The Tenant agrees to pay the following rental amount

R6000

Six thousand rands

3.2. The rental must be paid in advance, free of bank charges, on the **30/31st** day of each month.

3.3. Rental payments received after the 7th day of the month, will occur a surcharge of R250,00 to cover the additional administration costs.

3.4. rental must be paid without deduction or set off, directly into the following bank account:

Bank
Account Holder
210318
Account Type
CURRENT
Account Number
62545 715 148

3.5. The rental amount will be increased every year on the anniversary of the start of the agreement, in the percentage of 10%.

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3.6. A dated receipt will be issued by the Landlord upon receipt of the rental amount. The receipt will indicate the amount received, any arrears due, deposit kept, repair costs and any other charges incurred during the period for which the rent amount was paid.

4. COMMENCEMENT AND RENTAL PERIOD

4.1. the rental agreement will be valid from the 01 ⁵ 2024 until 202 202

4.2. The lease agreement will automatically be renewed, unless canceled in writing by either Landlord or Tenant. Notice of cancellation must be given at least **2 (two) months** before the lease expires.

5. DEPOSIT

5.1. The Tenant must as security for fulfillment of all its obligations under this agreement, pay a deposit of upon R4000 signing this agreement.

5.2. The Landlord will keep the deposit, for the benefit of the Tenant, provided :

5.2.1 NO damages

5.2.2 Notice has been served for 3 months prior vacation for the landlord "TO LET"

5.3. The Tenant cannot apply the deposit as payment of the last month's rental or any other rental due to the Landlord.

5.4. The Landlord is further entitled to deduct reasonable costs associated with repair of damages caused to the Premises during the lease period or the cost for lost keys.

5.5 Renting property requires you to pay one month's rent up front. This deposit is returned to the tenant when they vacate the property within 14 business days after the end of lease agreement.

5.6 If the lease agreement is automatically renewed, the lease will continue on the same conditions contained in the document and renewal will be negotiated. The landlord may also increase the deposit amount to be equal to the newly negotiated renewal.

6. INCOMING/OUTGOING INSPECTIONS

6.1. Tenant must put a list of any defects and attach to the agreement. Tenant must attend an ongoing inspection + will have a period of 7 days from first date of occupation to report any defects which need to be corrected by the landlord.

6.2. The Premises is let as is, VOETSTOOT, and the tenant acknowledges that the Premises is in a good state /condition, suitable for the purposes of letting in terms of this agreement.

6.3. The Landlord and Tenant must jointly inspect the Premises within **5(five) days** of this agreement expiring, to determine if there are any defects or damages causes to the Premises during the lease period.

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6.4. The Tenant will be liable for any damages or defects in the Premises, whether visible or concealed during the inspection. Upon termination of the lease agreement, the Tenant must restore the Premises to the Landlord in the same condition it was received at the start of the lease (fair wear and tear excluded)

6.5. Should the Landlord fail to inspect the Premises with the Tenant, the Landlord will be regarded to have acknowledged that the Premises is in a good and proper state of repair, and will have no claim against the Tenant.

6.6. Should the Tenant fail to respond to the Landlord's request to conduct a joint inspection, the Landlord must at the end of the lease, inspect the Premises, within **7(seven) business days** from the date that the Tenant moved out of the Premises.

7. LANDLORD'S RESPONSIBILITIES

7.1. The Landlord must provide the Tenant with vacant occupation of the Premises at the start of the lease, and allow the Tenant undisturbed enjoyment of the Premises for the duration of the lease.

7.2. It is the Landlord's responsibility to maintain the exterior, roof, gutters, downpipes of the Premises, in good order and condition (fair wear and tear to be expected).

7.3. The Landlord will further be responsible for maintenance to and repairs of the installations in the Premises including the locks, windows, geysers or other fixtures, fittings and installations. If repairs are required due to fault on part of the Tenant, the tenant will be responsible for the necessary repairs or replacements.

7.4. The Landlord is responsible for payment of the municipal rates and taxes on the premises.

7.5. The Landlord is responsible for payment of ordinary consumption charges levies on the Premises, such as water, sanitary, sewerage and refuse removal services that are not included in the annual rates.

8. TENANT'S OTHER RESPONSIBILITIES

8.1. For the duration of the lease, the Tenant must inform the Landlord of any defects or damages that require repair and are landlord's responsibility.

8.2. The interior must be maintained at the Tenant's own cost, the same good, defect-free condition as it was when lease started(fair wear and tear exclude). If the Tenant fails to fulfill its responsibility, the Landlord may take necessary repairs or maintenance and recover the costs from the Tenant. Proof of costs will be provided to the tenant.

8.3. Any broken windows glass or mirrors must be replaced by the Tenant on its own cost.

8.4. The Tenant may not drive any nails or object into the walls or ceilings of the Premises., unless the Landlord has prior written permission.

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- 8.5. All light-bulbs, switches, sockets, locks and keys must be replaced by the Tenant at its own cost and also be responsible for his/her own pre-paid electricity.
- 8.6. No additional fixtures or fittings may be installed on the Premises without the prior written permission of the Landlord. Consent will not be unreasonably refused. Approved fixtures and fittings may be removed by the Tenant before the end of the lease period. After the lease has expired, all fixtures and fittings which were not removed, become the Landlord's property, and it will not provide any compensation.
- 8.7. The Tenant will repair any damages or blemishes caused to the Premises upon removal of the Tenant's fixtures and fittings.
- 8.8. No structural changes or additions may be made, unless the Landlord's prior written permission has been obtained. All alterations, additions, and improvements to the Premises become the Property of the Landlord and no compensation will be paid.
- 8.9. The Tenant will not take an action or allow anything that may cause any damage to the Premises. Reasonable care will be taken to avoid blockages (gutters, downpipes, sewerage pipes, water-pipes, drains). Removal of any blockages will be for the tenant's own pocket.
- 8.10. The gardens must be kept clean and tidy and in good appearance. Plants must be watered and replaced regularly. All rubbish and litter must be removed and the refuse area be kept tidy and sanitary at all times.
- 8.11. No part of the Premises may be sub-let to or occupied by another person. The Tenant may not assign this lease, nor cede any of its rights herein, nor part with possession without prior written permission from the Landlord.
- 8.12. The Tenant may not refuse the Landlord or any of its agents' reasonable access to inspect or attend to repairs on the Premises.
- 8.13. **1 (one) month** prior to the lease expiring, the Tenant must allow the Landlord to display a "To Let" notice and at all reasonable times allow the Landlord or its agents to show prospective Tenants the interior of the Premises.
- 8.14. The Tenant must allow the Landlord to display a "For sale" notice at any point during the lease, and at all reasonable times allow the Landlord and its agents to show prospective buyers the interior of the Premises.
- 8.15. All sectional title and body corporate rules must be complied with. The Tenant must also comply with the Landlord's house rules, which may be amended in writing from time to time. A copy will be provided to the Tenant.
- 8.16. The Tenant must not cause any nuisance to others in the neighborhood.
- 8.17. The Tenant may not keep any illegal substances or weapons on the premises, nor omit to do anything or keep or do anything on the Premises that may be contrary the terms and conditions of any insurance policy held by the Landlord in respect of the building or Premises.
- 8.18. No pets or animals may be kept on the Premises, without prior written permission from the Landlord.

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- 8.19. Prior to vacating the Premises, all fitted carpets must be cleaned by a professional carpet cleaner at the Tenant's own cost.
- 8.20. The Tenant must return to the Landlord all keys, remote controls and other security items that allow access to the Premises.
- 8.21. Any repairs or replacements that are the Tenant's responsibility, must be carried out to the satisfaction of the Landlord, by competent and experienced workmen. No interior or bad quality products may be used at any stage.

9. INSURANCE & DAMAGES

- 9.1. The Tenant must at all times comply with the terms of any insurance policies that the Landlord has for the Premises. Should the premium increase due to the Tenant's failure to comply, it will be responsible for payment of any additional premium.

- 9.2. The tenant is responsible for its own household, car or other insurance, protecting its goods while residing on the Premises.

- 9.3. The landlord has no responsibility or liability towards the Tenant for any loss, theft or damage to the Tenant's household articles kept on the Premises.

- 9.4. Any temporary interruption in water or electricity supply that may cause the Tenant loss of beneficial occupation does not entitle the Tenant to cancel the Lease agreement, provided such loss of beneficial occupation does not exceed [3] week period. Tenant shall at all times retain the right to terminate the lease if the Tenant suffers loss of beneficial occupation of the premises for a period which exceeds [3] weeks. The Landlord will also not be held liable for any loss, damage or inconvenience caused.

10. LIABILITY & INDEMNITY

- 10.1. The Tenant indemnifies the Landlord for any loss or damage to property or injury to persons suffered on the Premises as a result of any act or omission by the Tenant or its occupants, guests, servants or agents.
- 10.2. The Tenant is liable for its own act and omissions, as well as that of its guests, servants, or agents while they are on or in the Premises.

11. CONSENT TO JURISDICTION OF THE MAGISTRATE'S COURT

- 11.1. The Landlord and the Tenant agree to the jurisdiction of the Magistrate's court, should any legal actions or proceedings relating to this agreement or breach thereof be instituted.
- 11.2. The Tenant will be liable for all costs incurred by the Landlord on an Attorney and Client scale, including collection commission.

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11.3. A certificate signed by a director, secretary of agent of the Landlord, indicating the amount due and owing to the Landlord, will be sufficient and *prima facie* proof of the amount reflected thereon, for purposes of summary judgement or any other legal proceedings.

12. DAMAGES/ DESTRUCTION OF THE PREMISES

12.1. Should the Premises at anytime during the lease be so damaged or destroyed that it deprives the Tenant of beneficial use and occupation of the Premises, this agreement will end, and both the Tenant and Landlord will only be liable of its obligations up to such date. Neither Party will have any further claim against each other.

12.2. Should the Premises at anytime during the lease only be partially damaged, this agreement will remain force and effect, and the Landlord will as soon as reasonably possible, repair the damage. The Tenant will be entitled to a reduction in the rental amount during such a period. Should a dispute arise about the reduction amount, an independent third party will be consulted to decide an appropriate and fair reduction. The Tenant must continue to pay the full rental amount until a reduction has been determined, the Landlord will credit the Tenant with such an amount as the Tenant has paid in excess of the reduced rent.

12.3. The Tenant will remain responsible for any damage or destruction caused to the Premises as a result of an act or negligence on part of the Tenant or any person who it's responsible for.

13. ONUS & AGENCY

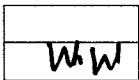
13.1. Where the Tenant must obtain a written permission of the Landlord in terms of the lease agreement, and it is believed that permission is unreasonably refused, the onus of proof lies with the Tenant.

13.2. The Landlord is entitled to appoint a managing agent to manage this lease on its behalf, and will inform the Tenant of such decision or resulting changes to the lease in writing.

14. CANCELLATION

14.1. The Tenant may choose to cancel the lease at any time, but must give the Landlord at least 20 (twenty) business days written notice.

14.2 Each party to serve 3 months notice.



15. BREACH OF AGREEMENT

15.1. Should allow parties to remedy breach within a period of no less than 7 days or a period agreed between parties.

15.2. If the Tenant fails to pay any amount due and payable in terms of this agreement on the due date or should the Tenant breach any other term of this contract and remain in default after notice has been provided to rectify the breach, the Landlord may choose to cancel this agreement by providing notice. If the Landlord chooses to cancel the agreement, any claim it may have of areas rental or damage or cost due to breach or cancellation, will not be prejudiced it should be subject to the notice period in clause 15.1

15.3. If the Landlord cancels this lease agreement, and the Tenant disputes the cancellation and remains in occupation of the Premises, the Tenant will continue to pay the agreed rental amount, and the other agreed costs on the due date until the matter has been resolved through mediation, litigation or the Rental Housing Tribunal.

15.3. If the dispute is found in the Landlord's favor, all payments made will be regarded as amounts paid by the Tenant on account of damages suffered by the Landlord. If the dispute is found in favor of the Tenant, all payments made by the Tenant will be regarded as amount paid on account on the rent payable by the Tenant.

16. NOTICES

16.1. All notices should be provided via email address because registered mail is not a reliable service.

16.2 Hand delivered notices must be given to a responsible person during ordinary business hours at the addresses reflected on the first page and sign that he/she received the notice.

17.3. The Tenant or Landlord must notify the other of any changes to its *domicilium citandi executandi*.

17. GENERAL TERMS

17.1. No changes to this agreement will have any effect or be of force, unless it is agreed in writing by both the Tenant and the Landlord.

17.2. This document represents all the agreed terms and conditions between the Landlord and Tenant, and neither has any right or remedy arising from undertaking, warranty or representation that is not contained in this document.

17.3. Any relaxation or indulge by either party in exercising any of its rights in terms of this agreement, does not mean that the right is waived or altered. Any single or partial exercise of any right doesn't preclude any other or future exercises thereof or the exercise of any other right under this agreement.

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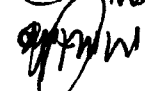
17.4. Headings have been inserted to the various clauses for ease of reference only, and are not to be taken into account when interpreting the terms of this agreement.

18.5. Words importing the singular also include the plural and other way around. Words importing any one gender also include the other, and words importing persons also includes corporate entities.

17.6. This agreement may be signed in one or more counterparts and the signature of copy by other party has the same effect as if that party signed the same document as the other party.

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18. SIGNATURES

Signed at _____
The Tenant: 
Witnesses: 

Signed at _____
The Landlord: _____
Witnesses: _____

Signed at _____
MIDDELBURG EC on _____ of _____ 2025

M.M.